MINISTRY OF LANDS, HOUSING AND URBAN DEVELOPMENT GUIDELINES ON THE APPLICATION, VERIFICATION AND ISSUANCE OF SPECIAL CERTIFICATES OF TITLE

Presented by the

HON. MINISTER OF LANDS, HOUSING & URBAN DEVELOPMENT

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PART I – PRELIMINARY 1. Title

These Guidelines may be cited as the Guidelines on the Application, Verification and Issuance of Special Certificates of Title.

2. Purpose

The purpose of these Guidelines is to;

a) Establish a clear, transparent, standardized and secure framework for processing Special Certificates of Title.
b) Promote the sanctity of the land register;
c) Provide opportunity for objection to irregular applications;
d) Strengthen verification and due diligence before issuance;
e) Improve accountability and traceability of decisions.

3. Legal Basis

These Guidelines shall be read together with the 1995 Constitution (as amended), The Registration of Titles Act Cap 240, The Land Act Cap 236, Applicable Regulations and Rules of procedure, Court orders and other applicable Laws.

Article 237 of the Constitution guarantees security of tenure and protects the lawful and bonafide occupants.

Section 69 of the Registration of Titles Act, Cap 240 provides for issuance of a Special Certificate where a duplicate certificate has been lost, destroyed or become so obliterated as to be useless. It further requires that the Registrar must be satisfied as to the truth of the statutory declaration and the bona fides of the transaction.

Section 70 of the Registration of Titles Act, Cap 240 provides for Special Certificates issued pursuant to a court direction and establishes a specific objection mechanism.

4. Scope

These Guidelines apply to applications for Special Certificates as provided for in the Registration of Titles Act Cap 240. The guidelines specifically apply to;

1) loss of a duplicate certificate of title;
2) obliterated and/or destroyed certificate of title;
3) court-directed issuance of a Special Certificate;
4) Applications involving administrators/administratrixes and Executors/Executrices of estates of deceased persons

PART II – PRINCIPLES GOVERNING SPECIAL CERTIFICATES

6. Governing Principles

a) Legality – no Special Certificate shall be issued unless the application is presented genuinely and bonafide.
b) Sanctity of the Register – the integrity and reliability of the Register Book shall be of paramount consideration.
c) Transparency – the process shall provide adequate notice to persons who may have or otherwise claim an interest in the land.
d) Natural justice – affected persons shall be given a reasonable opportunity to be heard, consistent with applicable law.
e) Proportionality – verification requirements shall correspond to the risk presented by the application.
f) Accountability – every material step shall be documented and stored in both physical and electronic format.

PART III – Categories of Application and Requirements 7. Categories of Applications

The Categories of applications include;

a) Obliterated
b) Lost grant (Duplicate Certificate of Title) and destroyed.
c) Court ordered grant
d) Applications by

a) Obliterated grant

Where an applicant seeks to replace an obliterated title, the following shall be the requirements;

a) An application for a special certificate (in triplicate)
b) Statutory declaration in support of the application
c) Evidence in support of payment of statutory fees
d) The Duplicate Certificate of Title so obliterated
e) Copy of the national Identification
f) Passport size photos
g) L.C. I committee report
h) Inspection and/or boundary opening report

b) Lost grant and destroyed Duplicate Certificate of Title

Where an applicant seeks to replace a lost grant, the following shall be the requirements;

a) An application for a special certificate (in triplicate)
b) Statutory declaration in support of the application
c) Evidence in support of payment of statutory fees
d) Copy of the national Identification

e) Passport size photos
f) Police form (loss of tittle)
g) L.C. I committee report
h) Inspection and/or boundary opening report
i) Gazette Notice
j) Newspaper advertisement in a Newspaper of wide circulation
k) Local notice

c) Court ordered Special Certificates

1) Where any court of competent jurisdiction under the civil procedure Act orders a registrar of titles to issue a special certificate of title, the judgment creditor shall;
   a) Submit a formal letter for implementing such an order
   b) Attach a certified copy the order
2) Prior to the issuance of such the registrar shall verify such an order with the same court that granted it.

d) Application by administrators/administratrixes and Executors/Executrices of estates

Where an application for a special certificate of title by an executor/executrix or Administrator/Adminsitratrix of an estate, the following requirements shall apply;

a) An application for a Special Certificate (in triplicate)
b) Statutory declaration in support of the application
c) Evidence in support of payment of statutory fees
d) Copy of the title
e) Copy of the national Identification
f) Passport size photos
g) Police form (loss of tittle)

h) L.C. I committee report
i) Inspection and/or boundary opening report
j) Gazette Notice
k) Newspaper advert
l) Local notice
m) A copy of the inventory
n) Letters of probate or Administration
o) Copy of the petition for probate or letters of Administration

PART V – NOTICE AND OBJECTION

8. Publication of Notice

1) Before issuance of a Special Certificate under section 69, the Registrar shall publish the required notice in the Gazette to run for at least 30 days.
2) Subject to subsection (1) above, the notice shall be displayed at Sub County, L.C.1 Notice board and on the land for at least 30 days.
3) The Ministry of Lands, Housing & Urban Development shall have a list of all applications of special certificates published once a month in a newspaper of wide circulation.
4) The Ministry shall display the Notices on the Ministry Website of such parcels of land that are subject of Applications for Special Certificates of Title and the corresponding applicants. The same shall subsist for the same period.

9. Form of Notice

A notice shall be placed on the land stating: **"NOTICE OF APPLICATION FOR SPECIAL CERTIFICATE OF TITLE"** and shall identify the parcel, relevant register particulars including at least three (3) previous transactions if any, name of

applicant, date of application and contact point for objections

10. Inspection and/or boundary opening Report

1) Inspection and boundary opening shall be carried out by a government surveyor and a registrar of titles or a land officer.
2) The inspection report should contain minutes of the inspection, members present and details of what is on the land, the subject of the application for special certificate of title describing the development status, occupancy and use.
3) The inspection to be done in the presence of the Local Council I (L.C.I) committee, whose quorum is 5 people.

11. Objections

1) Any person claiming an interest in the land or alleging fraud, impersonation, competing ownership, double sale, unlawful retention or other material irregularity may lodge an objection by a formal letter to the registrar within the applicable notice period.
2) The objector shall sufficiently prove the reasons for the objection in the formal letter
3) Where the registrar receives an objection to the issuance of the special certificate of Title, the registrar shall call both parties for a hearing and make a ruling on the same.

PART IX – DECISION-MAKING AND APPROVAL 12. Decision Standard

The Registrar shall only approve issuance where satisfied that:

a) The lost or obliterated certificate of title was genuine and authentic
b) the applicant is properly identified;

c) the applicant has legal authority to apply;
d) the loss, destruction or obliteration has been sufficiently established;
e) any recognized pending transactions shall be completed;
f) the transaction is bona fide;
g) material encumbrances and dealings have been identified;
h) the applicable notice requirements have been satisfied;
i) no unresolved matter exists that legally prevents issuance; and
j) The proposed Special Certificate accurately reflects the Register Book.

13. Reasons for Decision

Every decision to approve, defer, reject or suspend an application shall be recorded with reasons.

PART X – ISSUANCE AND REGISTER BOOK ENDORSEMENT 14. Contents of Special Certificate

The Special Certificate shall contain the information required by the Registration of Titles Act, including the relevant Register Book particulars, memoranda and endorsements and the reason for issuance.

15. Endorsement in Register Book fact of issuance; date of issuance; reason for issuance; reference to the previous certificate; application number; relevant Gazette notice; relevant court order where applicable; and other required particulars.